

IT Act 2000

Information Technology Act, 2000

Applicable IT Acts

User Query : IIIT DELHI is using my data and selling it to third party organisation now it is available online

Job Id. : c8eb04ad-90ed-4308-b5fa-176ea7f084e3/IT Act

User Name : Ravi Shekhar Tiwari

Prepared by : NyaySahayak

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APPLICABLE SECTIONS

Section 43A

This section deals with the compensation for improper use of personal data. It states that if any person, on behalf of himself or any other person, collects, receives, stores, or otherwise processes personal data, he shall, in the event of unauthorized use or disclosure of such data, be liable to pay compensation to the person affected.

Section 46

This section pertains to the penalty for breach of confidentiality. It states that whoever, intentionally or recklessly, without the consent of the person concerned, discloses or transmits personal data in contravention of the provisions of this Act, shall be liable to pay a penalty.

Section 66

This section deals with the computer-related offenses, including hacking, data theft, and unauthorized access to computer systems.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 In the given scenario, IIIT Delhi has allegedly used your data and sold it to a third-party organization, making it available online. This raises concerns about the unauthorized use and disclosure of personal data.

- **Section 43A** applies as IIIT Delhi, as a custodian of personal data, has allegedly failed to protect your data and allowed its unauthorized use. You may claim compensation for the harm caused due to the improper use of your personal data.
- **Section 46** is relevant as IIIT Delhi's actions may be considered a breach of confidentiality. The institute may be liable for disclosing or transmitting your personal data without your consent.
- **Section 66** may also apply if it is found that IIIT Delhi has committed computer-related offenses, such as hacking or unauthorized access to computer systems, to facilitate the sale of your data.

✓ STRENGTHS & RIGHTS

- 1** The IT Act, 2000 provides provisions for the protection of personal data and confidentiality.
- 2** The Act offers recourse for individuals who have been affected by unauthorized use or disclosure of their personal data, including compensation and penalties.

X RISKS & OBLIGATIONS

- 1** The Act imposes penalties and liabilities on individuals and organizations for breaches of confidentiality and unauthorized use of personal data.
- 2** IIIT Delhi may face penalties and reputational damage if found guilty of violating the provisions of the IT Act, 2000.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Filing a complaint: You may file a complaint with the concerned authorities, such as the Cyber Cell or the Information Technology Department, Government of India, or approach the court for redressal.
- 2.** Investigation: The authorities will investigate the matter, and IIIT Delhi may be required to provide evidence and explanations for their actions.
- 3.** Electronic evidence: In presenting electronic evidence in court, it is essential to follow the procedures outlined in the IT Act, 2000, and the Indian Evidence Act, 1872, to ensure its admissibility and authenticity.
- 4.** Seek legal counsel to guide you through the process and help you understand your rights and options under the IT Act, 2000.

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